

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kobi Bordoley	Team: Squad #03	CCRB Case #: 201610539	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/17/2016 11:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/17/2018	Precinct: 79		
Date/Time CV Reported Wed, 12/28/2016 2:23 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 12/28/2016 2:23 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Alex Morocho	5420	939794	079 PCT
2. POM Willmer Hernandez	05901	944650	079 PCT
3. POM Anthony Davila	14220	956571	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Lela Banks	07366	953658	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Alex Morocho	Abuse: Sergeant Alex Morocho stopped § 87(2)(b)	A . Exonerated
B . POM Willmer Hernandez	Abuse: Police Officer Willmer Hernandez stopped § 87(2)(b)	B . Exonerated
C . SGT Alex Morocho	Discourtesy: Sergeant Alex Morocho spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . SGT Alex Morocho	Abuse: Sergeant Alex Morocho threatened § 87(2)(b) with the use of force.	D . Exonerated
E . POM Anthony Davila	Force: Police Officer Anthony Davila used physical force against § 87(2)(b)	E . Exonerated
F . POM Anthony Davila	Discourtesy: Police Officer Anthony Davila spoke discourteously to § 87(2)(b)	F . Unsubstantiated

Case Summary

On December 28, 2016, § 87(2)(b) made the following complaint in-person at the CCRB.

On September 17, 2016, § 87(2)(b) took somebody's wallet from § 87(2)(b), located at § 87(2)(b), in Brooklyn. She was later approached in her apartment by § 87(2)(b) who claimed that the wallet was his; however § 87(2)(b) did not give it back. Later, at approximately 11:30 A.M., § 87(2)(b) returned to the location to return the wallet, and saw § 87(2)(b) again. § 87(2)(b) hailed down a police captain from an unknown command, and complained that § 87(2)(b) had stolen his wallet, and that there was video footage to prove it. The captain then hailed another police vehicle, and Sgt. Alex Morocho and PO Willmer Hernandez, both of the 79th precinct, arrived on scene, and took over dealing with the incident as the captain left. Sgt. Morocho and PO Hernandez stopped § 87(2)(b) (**Allegation A and B**). PO Hernandez stood with § 87(2)(b) as Sgt. Morocho went inside to view the store's video footage with § 87(2)(b). During this time, § 87(2)(b) was complaining about the incident, and pacing back and forth. Sgt. Morocho then exited the smoke shop, and told § 87(2)(b) to "stand the fuck still," (**Allegation C**) or it would make it "easier for him to use this," meaning his Taser, which was drawn at his side (**Allegation D**). § 87(2)(b) complained about the threat of the Taser and tried to walk forward, but was then told to stand still and was put into handcuffs by PO Hernandez. Two other officers, PO Elise Banks and PO Anthony Davila, also of the 79th Precinct, then arrived. At this time, § 87(2)(b) complained that the cuffs were too tight, and that she wanted to go to the hospital. PO Banks and PO Davila told § 87(2)(b) to get into their police vehicle, but she held her ground and refused to do so. PO Davila allegedly then pulled on § 87(2)(b)'s clothes, pushing her into the vehicle (**Allegation E**). Once inside the vehicle, PO Davila said to § 87(2)(b) to turn her "fucking feet around," (**Allegation F**) and bring them all the way inside the vehicle. § 87(2)(b) was then transported to the stationhouse, where her handcuffs were removed while she was in the holding cell. § 87(2)(b) complained about an oncoming anxiety attack and asked to go to the hospital again, at which point she was taken to the hospital. § 87(2)(b) was arrested was charged with § 87(2)(a) 160.50

There was no video footage of this incident.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation as § 87(2)(b) was arrested as a result of the incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- On March 3, 2017, a FOIL registration confirmed that § 87(2)(b) had not filed any Notices of Claim in regards to this incident. (04 Board Review).

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB Complaint (03 Board Review).
- Sgt. Morocho has been a member of the NYPD for 11 years and has no prior CCRB cases.
- PO Hernandez has been a member of the NYPD for nine years and has one prior CCRB case involving one allegation and no substantiations. § 87(2)(g)
- PO Davila has been a member of the NYPD for two years and has one prior CCRB case involving one allegation and no substantiations. § 87(2)(g).

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Allegation A – Abuse of Authority: Sergeant Alex Morocho stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Wilmer Hernandez stopped § 87(2)(b)

§ 87(2)(b) said that after returning to the smoke shop with the wallet she had taken from the store earlier in the day, she exited the store and saw § 87(2)(b) who hailed a police captain. While outside with the captain, § 87(2)(b) and § 87(2)(b) argued with one another, using profanity. The police captain told them to calm down, but § 87(2)(b) and § 87(2)(b) continued to argue, threatening one another with violence. The captain then hailed another police vehicle, and upon doing so PO Hernandez and Sgt. Morocho arrived and approached § 87(2)(b). PO Hernandez then stopped and detained her while Sgt. Morocho went inside the smoke shop with § 87(2)(b). § 87(2)(b) asked PO Hernandez why she had just been stopped, to which PO Hernandez said that he had heard that she had stolen a wallet. § 87(2)(b) continued to argue with PO Hernandez, who said that she was being detained while his partner checked the video footage (05 Board Review).

§ 87(2)(b) said that soon after speaking with the first police officer, Sgt. Morocho and PO Hernandez arrived on scene. § 87(2)(b) spoke to them, saying that § 87(2)(b) had stolen his wallet and money, and pointed her out. He then took Sgt. Morocho inside the store to view the video footage, while PO Hernandez stayed outside with § 87(2)(b) (06 Board Review).

PO Hernandez said that he was on patrol with Sgt. Morocho when they received a call over the radio from a captain from a special victims squad, requesting backup. PO Hernandez and Sgt. Morocho arrived on scene, at which point the captain asked them to handle the situation. PO Hernandez and Sgt. Morocho said that they would. At that point, § 87(2)(b) explained to both PO Hernandez and his partner that § 87(2)(b) who was at the location, had stolen his money and could be seen on video. Sgt. Morocho then went inside with § 87(2)(b) while PO Hernandez stayed outside with § 87(2)(b) who was detained at the time for purposes of the investigation. PO

Hernandez asked § 87(2)(b) what was going on, and she said that she had found a wallet but returned it (07 Board Review)

Sgt. Morocho said that he and his partner were on patrol when they received a call from a captain who required assistance. Upon arrival, the captain told him that there was a dispute over a stolen wallet, and pointed out the victim, asking him to take care of the situation. Sgt. Morocho then spoke to § 87(2)(b) who said that he had left a wallet at the smoke shop nearby, and came back later to look for it when a worker in the store told him that § 87(2)(b) who was in the vicinity at that moment, had taken the wallet and could be seen on video. Sgt. Morocho then told PO Hernandez to stop § 87(2)(b) while he went inside to investigate the video footage (08 Board Review)

PO Elise Banks and PO Anthony Davila were not present for this portion of the incident. (09 Board review), (10 Board Review).

Officers are authorized to stop and detain an individual if they have a reasonable suspicion that that particular person “has committed, is committing or is about to commit” a crime. People v. DeBour, 40 N.Y.2d 210 (1976) (11 Board Review).

§ 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that **Allegation A** and **Allegation B** be *exonerated*.

Allegation C – Discourtesy: Sergeant Alex Morocho spoke discourteously to § 87(2)(b)

§ 87(2)(b) said that after Sgt. Morocho came outside from the smoke shop, he told her to “Stand the fuck still.” PO Hernandez was still with her at the time, and she was trying to step away from them to go inside of the smoke shop (05 Board Review).

§ 87(2)(b) said that he was inside the smoke shop during the incident, but did not recall any officers using profanity (06 Board Review).

Sgt. Morocho recalled that he came outside of the smoke shop to inform § 87(2)(b) that she was going to be put under arrest, and that the situation then escalated, as she became more upset. However, Sgt. Morocho denied saying “Stand the fuck still” to § 87(2)(b) or using any profanity when speaking to her (08 Board Review)

PO Hernandez said that after viewing the video inside the smoke shop, Sgt. Morocho came outside and informed § 87(2)(b) that she was under arrest. § 87(2)(b) became more upset at that, but he did not hear Sgt. Morocho say, “Stand the fuck still,” or use any profanity when speaking to § 87(2)(b) (07 Board Review).

Neither PO Banks nor PO Davila heard Sgt. Morocho say, “Stand the fuck still” to § 87(2)(b) or heard any officer use any profanity when speaking to her during the incident (09 Board Review), (10 Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be *unsubstantiated*.

Allegation D – Abuse of Authority: Sergeant Alex Morocho threatened § 87(2)(b) with the use of force.

§ 87(2)(b) said that while she was outside the smoke shop, she was trying to see what was going on in the store and was therefore stepping back and forth, with the intention of going inside. At this time, she was also arguing with PO Hernandez, saying that she should be allowed in the store if Sgt. Morocho and § 87(2)(b) were allowed inside. PO Hernandez continued to tell her to stand still, at which point a crowd began to form. Sgt. Morocho then exited the store and also told § 87(2)(b) to stand still so they could investigate. § 87(2)(b) spoke to someone she recognized in the crowd, saying that the police had stopped her over a wallet she had found earlier in the day, the ownership of which was in dispute. § 87(2)(b) continued stepping back and forth to try to enter the store, and Sgt. Morocho said, “Stand the fuck still,” and that if she did not, it would make it “much easier for me to use this,” indicating the Taser that he had drawn at his side. § 87(2)(b) then asked why he was threatening to Tase her, as she just wanted to see what was going on inside the store. § 87(2)(b) then tried to walk towards the store, but PO Hernandez told her to stay where she was standing, which was next to a telephone pole. She then argued with PO Hernandez and said she wanted to go inside. At this time a black dog that was in the vicinity jumped near her leg. PO Hernandez then handcuffed § 87(2)(b). Later in her interview, she stated that she was handcuffed before Sgt. Morocho implied that he would use his Taser on her (05 Board Review).

§ 87(2)(b) said that while he and Sgt. Morocho were reviewing footage inside the store, he heard commotion outside, from where PO Hernandez and § 87(2)(b) were standing. § 87(2)(b) looked outside from inside the store, and saw § 87(2)(b) yelling statements like, “I’m not going to jail, I didn’t do the crime, I’m not giving any ID,” to PO Hernandez. § 87(2)(b) said that outside, § 87(2)(b) was told to calm down and that the police needed a statement from both her and the other party, but she said that she did not care and wasn’t going to give a statement. § 87(2)(b) thought that another female officer may have arrived around this time, but he was not sure. § 87(2)(b) was also waving her arms up and down, swinging them in front of her body, but not towards any police officer. She also stepped away from the police outside, as if to evade capture. At around this time, Sgt. Morocho stepped toward the door and he heard an officer mention a Taser. At some point after an officer mentioned a Taser, § 87(2)(b) believed that § 87(2)(b) was handcuffed, although he did not see her placed in handcuffs (06 Board Review).

Sgt. Morocho said that after viewing the video footage, he then went outside and said to § 87(2)(b) “Ma’am, we are going to arrest you. We are going to put cuffs on you.” § 87(2)(b) then backed up from him and PO Hernandez, raised her arms into a fighting stance, and clenched her

fists. She then began to scream, “I’m not going nowhere, I’m not going to go. You’re not going to arrest me.” As she backed up, Sgt. Morocho said, “Ma’am, we want you to please turn around, we’re going to handcuff you and take you to the precinct.” § 87(2)(b) screamed again, “I’m not going to go,” and began to back up again. He and PO Hernandez then moved in closer to her, and attempted to handcuff her. Sgt. Morocho tried to grab one of § 87(2)(b)’s arms, but she jerked it away. PO Hernandez also tried to grab § 87(2)(b)’s arm to handcuff her, and while Sgt. Morocho did not recall if he succeeded in grabbing her or not, he did recall that § 87(2)(b) continued to back away and raised her hands and clenched her fists again in a fighting stance. After she did this, he un-holstered his Taser and pointed it at § 87(2)(b) telling her, “Please, put your hands down, stop resisting and turn around, we’re going to arrest you. Let us cuff you.” § 87(2)(b) refused, and again said that she did not want to go anywhere. He continued to ask § 87(2)(b) to calm down, but she kept screaming. Sgt. Morocho un-holstered his Taser because § 87(2)(b) was a large woman, over 6’0” tall and 250 pounds, and based on her resistance to being handcuffed and fighting stance, he expected that a physical confrontation might occur. After he pointed his Taser at her she continued to verbally resist arrest, but stopped coming toward him and his partner and had continued to back up, and so he did not use his Taser. Additionally, at approximately this time a stray dog arrived on the scene and his attention was diverted to trying to control it (08 Board Review).

PO Hernandez said that while standing outside with § 87(2)(b) she told him that she was bipolar, and was a sweetheart, but “can explode and become a lion.” Because of this, he knew her mood could change rapidly, and wanted to keep her calm. PO Hernandez was still standing outside with § 87(2)(b) when Sgt. Morocho came outside, and informed § 87(2)(b) that she was going to be arrested. § 87(2)(b)’s demeanor then changed dramatically, and she began screaming that the situation was not fair and that she did not want to be placed under arrest. PO Hernandez and Sgt. Morocho then moved to grab her arms so she could be handcuffed, but she pulled her arms away from them. Sgt. Morocho tried to grab her arm again, but § 87(2)(b) pulled her arm away again. Sgt. Morocho then un-holstered his Taser, and told § 87(2)(b) to comply. § 87(2)(b) said, “Are you going to tase me?” At this, PO Hernandez told Sgt. Morocho that they should call backup to deal with the situation. Sgt. Morocho then backed away from § 87(2)(b) and PO Hernandez continued to speak with her, calming her down. PO Hernandez was committed to calming down § 87(2)(b) as she was a large woman, who was bigger than both him and his partner. PO Hernandez estimated that § 87(2)(b) was 6’0” tall and close to 280 pounds. At about this point a stray dog arrived on the scene, and Sgt. Morocho went to handle that situation (07 Board Review).

Both PO Banks and PO Davila said they arrived after the confrontation with the Taser occurred. Neither recalled Sgt. Morocho brandishing his Taser or threatening § 87(2)(b) with his Taser during the incident (09 Board Review), (10 Board Review).

Tasers should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. The use of a Taser is classified as a significant intermediate use of force option such as O.C. pepper spray or impact techniques. (PG 221-08) (12 Board Review).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation D** be *exonerated*.

Allegation E – Force: Police Officer Anthony Davila used physical force against § 87(2)(b)

§ 87(2)(b) said that after she was handcuffed, she complained that the handcuffs were too tight, and asked for them to be taken off. Soon after, two more officers, PO Banks and PO Davila, arrived in another police vehicle. PO Davila told her to get in the vehicle, but she kept demanding to go to the hospital. PO Davila told her to get in the car, but she did not want to as she did not believe the police would take her to the hospital. PO Davila told her to get in the car again, this time to protect herself from the dog that was in the area. She refused to do so, and instead demanded an ambulance. PO Davila then pulled on her shirt and clothes, and pushed her into the car. PO Banks told § 87(2)(b) to calm down, but she still complained that the handcuffs were too tight, and that she had been pushed. § 87(2)(b) did not sustain any physical injuries in regards to the alleged push. Once at the stationhouse, an ambulance was subsequently called for § 87(2)(b) after she complained about an oncoming anxiety attack (05 Board Review).

§ 87(2)(b) said that he did not see the police interact with § 87(2)(b) while she got into the police vehicle, and only saw her inside of the vehicle afterwards, once he exited the store (06 Board Review).

PO Davila said that upon arriving on scene, he and his partner were directed by Sgt. Morocho to transport § 87(2)(b) back to the stationhouse. At first, § 87(2)(b) verbally refused to leave where she was standing, saying that she did not want to go. Eventually, after he, PO Banks, and Sgt. Morocho spoke with § 87(2)(b) she complied with walking towards the car. He and his partner held § 87(2)(b) by the arms and began to guide her, however she became noncompliant once more, and planted her feet on the ground. He, PO Banks, and Sgt. Morocho continued to use verbal

commands to get § 87(2)(b) to go to the vehicle. No physical force was needed to get § 87(2)(b) to the car, and he did not push on her clothes at all to place her in the vehicle. PO Davila did not want to get into a physical confrontation, and described § 87(2)(b) as a tall woman with a medium build. § 87(2)(b) was upset at the time, but he could not recall specifically what she was saying. PO Davila did not recall § 87(2)(b) complain about any force being used against her (10 Board Review).

PO Banks said no force was necessary to place § 87(2)(b) into the police vehicle, and that no officers pushed on her clothes to get her into the vehicle. PO Banks corroborated PO Davila's account of how § 87(2)(b) was taken to the police vehicle, noting that it took 15 minutes to get her to the vehicle because she kept stopping and planting her feet. Even though § 87(2)(b) was upset, PO Banks used her verbal skills to convince § 87(2)(b) to keep moving and gain compliance, due to her size. When inside the car, PO Banks recalled § 87(2)(b) also complained that she had a bad knee. She did not recall § 87(2)(b) complaining of any other injuries before reaching the car, and did not believe that § 87(2)(b) sustained any injuries during the incident. After speaking to Sgt. Morocho, § 87(2)(b) complied with getting into the vehicle (09 Board Review).

Sgt. Morocho said that he did not see any officers pull on § 87(2)(b)'s clothes in an attempt to get her inside the police vehicle. § 87(2)(b) did not complain about anyone using force against her. He did not recall § 87(2)(b) complaining of any injuries (08 Board Review).

PO Hernandez said that he observed other officers place § 87(2)(b) into the police vehicle, but did not think any force was necessary to do so, and believed that she complied with getting inside (07 Board Review).

Force may be used when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (PG 221-01) (13 Board Review).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Therefore, it is recommended that **Allegation E** be *exonerated*.

Allegation F – Police Officer Anthony Davila spoke discourteously to § 87(2)(b)

§ 87(2)(b) said that although she was pushed into the police vehicle, her legs were not fully inside the vehicle. Because of this, PO Davila told her to turn her “fucking feet around,” so that she

would be fully inside the car. Upon saying this, § 87(2)(b) complied, and pulled her legs into the vehicle (05 Board Review).

§ 87(2)(b) was standing inside the store during the incident, and did not see § 87(2)(b) get inside of the police vehicle. He did not recall any officers using profanity when speaking to § 87(2)(b) (06 Board Review).

PO Davila said that once § 87(2)(b) complied with getting into the police vehicle, he explained that she should go in back first, and then slide in. He did not recall if § 87(2)(b)'s legs were ever dangling outside of the vehicle. He denied telling § 87(2)(b) to turn or move her “fucking feet,” and never heard any officer say that to § 87(2)(b). PO Davila denied using any profanity while interacting with § 87(2)(b) by the vehicle, and never heard any officers using profanity while speaking to her at the police vehicle (10 Board Review).

PO Banks said that after speaking to Sgt. Morocho, § 87(2)(b) complied with getting into the vehicle, and went in backside first, sliding her legs inside after she and PO Davila asked her to do so. There was no point when § 87(2)(b)'s legs were dangling outside the vehicle. She did not recall any officer telling § 87(2)(b) to move her “fucking feet” and did not recall any profanity being used against § 87(2)(b) (09 Board Review).

Sgt. Morocho did not recall how § 87(2)(b) got into the police vehicle, but recalled that she put her legs outside of the vehicle, so the door could not close. While in the vehicle, § 87(2)(b) again said that she did not want to go to the stationhouse. Sgt. Morocho told her to please put her legs inside the car. Sgt. Morocho never used profanity against § 87(2)(b) or told her to move her “fucking feet,” and never heard another officer make those statements or use profanity against her (08 Board Review).

PO Hernandez saw § 87(2)(b) get into the police vehicle, but he did not recall officers speaking with § 87(2)(b) while she was near the police vehicle or anything particular about her entry into the vehicle (07 Board Review).

§ 87(2)(g)

_____. Therefore, it is recommended that **Allegation F** be *unsubstantiated*.

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____

	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date